

BUTTS v FCA US, LLC, et al

25CV47877

PLAINTIFF'S MOTION TO COMPEL INITIAL DISCLOSURES AND MONETARY SANCTIONS

This is a lemon law matter brought by Plaintiff Alan Butts ("Plaintiff") against FCA US, LLC ("FCA") and Stoneridge Chrysler Jeep Dodge ("Stoneridge.") Now before the Court is Plaintiff's motion to compel production of documents.

I. Background

Plaintiff purchased a 2022 Ram 3500 vehicle on July 21, 2022, for a total sales price of \$117,829.44. Plaintiff filed the Complaint in this action on February 11, 2025. FCA US LLC filed its Answer on May 5, 2025.

Pursuant to California Code of Civil Procedure section 871.26, subdivision (h), FCA was required to provide all mandatory initial disclosures within 60 days of filing its Answer (or by July 4, 2025).

FCA apparently produced the initial disclosures months after the mandatory deadline. However, Plaintiff contends that while FCA made certain disclosures but has failed to provide all the mandatory disclosures and documents. FCA opposes the motion.

II. Legal Standard

Code Civil Procedure section 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, section 871.26(h) provides for the production of the following documents within 60 days of the filing of the responsive pleading: copy of access to a version of the owner's manual for a motor vehicle of the same make, model, and year; any warranties issued in conjunction with the sale of the motor vehicle; sample brochures published for the motor vehicle; the motor vehicle's original invoice, if any, to the selling dealer; sales or lease agreement, if the manufacturer is in possession; motor vehicle information reports, including build documentation, component information, and delivery details; entire warranty transaction history for the motor vehicle; and more.

Code Civil Procedure section 871.26(j)(1) provides, in pertinent part, the following:

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed

pursuant to this chapter, a court shall impose sanctions as follows . . . (2) [a] two-thousand five-hundred-dollar (\$2,500) sanction against the defense attorney . . . paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

There is no meet and confer requirement set forth in Code Civil Procedure section 871.26. (*Beltran v. FCA US LLC*, 2025 Cal.Super.LEXIS 79237.)

III. Discussion

FCA filed its answer on May 5, 2025, which required FCA to produce the aforementioned documents by July 4, 2025, pursuant to CCP § 871.26. FCA produced documents after the deadline in October of 2025.

Plaintiff brings the instant motion arguing that FCA “refuses to produce” the following: (1) the Warranty Policies and Procedure Manual; (2) Pre-Delivery Inspection records showing what defects FCA knew about and the vehicle’s condition at the time of sale; (3) the entire warranty transaction history with missing diagnostic trouble code results customer concerns, and repair history; (4) field action and recall documentation; (5) applicable technical service bulletins and information service bulletins; and (6) service manuals for systems the dealer diagnosed and repaired.

In opposition, FCA argues that it served all initial disclosures pursuant to section 871.26 and that any delay in producing the documents was harmless. FCA asserts that its document production “included over 1,000 pages of materials, including the repair records, warranty claims records, sales brochures, sales documents, vehicle information detail report, glove box documents, the Monroney label, Technical Service Bulletins (“TSBs”), and recalls applicable to the Subject Vehicle. Simultaneously, FCA provided Plaintiff with a proposed Stipulation and Protective Order (“SPO”) based on the Los Angeles Superior Court Model Protective Order – Confidential Designation Only to facilitate the production of additional materials that FCA US considers confidential and proprietary. Apparently, FCA would produce the remaining mandatory documents, including the Warranty Administration Manual, the FCA US Dealer Policy Manual, the Customer Assistance Center (“CAC”) Policies and Procedures and the Service Manual pursuant to this SPO.

In reply, Plaintiff argues that FCA “admits it has withheld” the Warranty Administration Manual, the Service Manual, the Dealer Policy Manual, and the Customer Assistance Center Policies and Procedures. FCA stated that it was ready to produce these documents once a protective order is in place. This is not good cause for failing to timely produce mandatory disclosures. First, nothing in the statute’s mandatory disclosure provisions contains an exception to the mandatory requirements, or excuses delay, on the grounds that a protective order is necessary. Indeed, there is no mention of seeking protective orders whatsoever in the statute which very clearly outlines the numerous documents which FCA is mandated to disclose.

Further, while the Court encourages joint stipulations, if one party (Plaintiff) refuses to sign a SPO, FCA could have filed a motion for protective order with the Court prior to the initial disclosure deadline. It did not do so and has still not filed for a protective order.

IV. Sanctions

Plaintiff requests sanctions on the grounds that FCA failed to produce documents in mandatory categories and sanctions are therefore required pursuant to CCP § 871.26(j)(1).

Considering FCA's untimely initial disclosures, its failure to provide all mandatory documents, and its failure to timely seek a protective order (Code Civ Proc. §2031.060(a), the Court finds FCA's noncompliance with Code Civil Procedure section 871.26 unjustifiable, thereby requiring sanctions.

V. Conclusion

Accordingly, Plaintiff's Motion to Compel is **GRANTED**. Additionally, FCA is ordered to pay sanctions in the amount of \$2,500.00 within fifteen (15) days of this Order.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Order.